



CHAPTER xli.

An Act to confirm certain Provisional Orders of the A.D. 1901.
 Local Government Board relating to Bilston Buxton
 Leicester (two) Milton next Sittingbourne Neath and
 Newton in Mackerfield. [2nd July 1901.]

WHEREAS the Local Government Board have made the
 Provisional Orders set forth in the schedule hereto under
 the provisions of the Public Health Act 1875 :

38 & 39 Vict.
 c. 55.

And whereas it is requisite that the said Orders should be
 confirmed by Parliament and that the provision herein contained
 should be enacted with reference to certain of such Orders :

Be it therefore enacted by the King's most Excellent Majesty
 by and with the advice and consent of the Lords Spiritual and
 Temporal and Commons in this present Parliament assembled
 and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto shall be and the
 same are hereby confirmed and all the provisions thereof shall
 subject to the provisions of this Act have full validity and force.

Orders
 in schedule
 confirmed.

2. The authorities mentioned in the Bilston Order 1901 and
 the Leicester Order (Sewage Lands) 1901 shall not under the
 powers of those Orders purchase or acquire either compulsorily
 or by agreement ten or more houses which on the fifteenth day
 of December last were occupied either wholly or partially by
 persons belonging to the labouring class as tenants or lodgers
 or except with the consent of the Local Government Board ten
 or more houses which were not so occupied on the said fifteenth
 day of December but have been or shall be subsequently so
 occupied.

Special
 provision
 as to houses
 of labouring
 class.

For the purposes of this section the expression "labouring
 class" means mechanics artisans labourers and others working

A.D. 1901. for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title. **3.** This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1901.

[Ch. xli.] *Local Government Board's* [1 EDW. 7.]
Provisional Orders Confirmation (No. 2) Act, 1901.

A.D. 1901.

Bilston Order.

Purposes of Article I. to be purposes of Local Act as to power to borrow. Revenue of cemetery undertaking to be charged with loans for cemetery purposes.

Short title.

Art. II. The purposes of Article I. of this Order shall be deemed to be purposes of the Local Act for which the District Council may with the approval of the Local Government Board borrow money under the provisions of that Act. Provided that in order to secure the repayment of any moneys borrowed for cemetery purposes and the payment of the interest thereon the District Council shall not mortgage or charge the revenue of their water undertaking but they may mortgage or charge the revenue of their cemetery undertaking in addition to the district fund and general district rate anything in Section 85 of the Local Act to the contrary notwithstanding.

Art. III. This Order may be cited as the Bilston Order 1901.

The SCHEDULE above referred to.

All that piece of land containing 4 acres 1 rood and 37 perches situate adjoining the cemetery in the Township of Bilston in the County of Stafford and now belonging or reputed to belong to Henry Ward of Rodbaston Penkridge in the County of Stafford Esquire.

Given under the Seal of Office of the Local Government Board this
 Twentieth day of March One thousand nine hundred and one.

(L.S.)

WALTER H. LONG President.
 S. B. PROVIS Secretary.

URBAN DISTRICT OF BUXTON.

Buxton Order.

*Provisional Order for altering a Local Act and certain
 Confirming Acts.*

To the Urban District Council of Buxton;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Buxton (herein-after referred to as "the District Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Buxton (herein-after referred to as "the District");

36 Vict. c. lvi.

And whereas there are in force in the District the unrepealed provisions of the Buxton Local Board Act 1873 (herein-after referred to as "the Local Act") as altered by the following Provisional Orders of the Local Government Board viz.,—

41 Vict.
 c. xxxvii.

(a.) The Buxton Order 1878 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Abingdon &c.) Act 1878;

43 & 44 Vict.
 c. xxxvi.

(b.) The Buxton Order 1880 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Abingdon &c.) Act 1880;

SCHEDULE.

A.D. 1901.

URBAN DISTRICT OF BILSTON.

*Provisional Order for altering the Bilston Improvement
Act 1896.*

Bilston Order.

To the Urban District Council of Bilston ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Bilston (hereinafter referred to as "the District Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Bilston (hereinafter referred to as "the District") and the unrepealed provisions of the Bilston Improvement Act 1896 (hereinafter referred to as "the Local Act") are in force in the District ;

59 & 60 Vict.
c. cccxxxix.

And whereas by Section 53 of the Local Act the District Council were authorised to maintain the cemeteries constructed in and upon certain lands referred to in that section and to use those lands for that purpose ;

And whereas by Section 85 of the Local Act the District Council were empowered to borrow with the approval of the Local Government Board such moneys as the District Council might require for any of the purposes of that Act and it was by the said section provided that in order to secure the repayment of the moneys borrowed under that section and the payment of the interest thereon the District Council might mortgage or charge the district fund and general district rate of the District and in addition the revenue of the water undertaking of the District Council ;

And whereas it is expedient that the District Council should be empowered to purchase and use for the enlargement of their existing cemeteries the land described in the schedule hereto and to borrow money for those purposes :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect viz.,—

38 & 39 Vict.
c. 55.

Art. I. The District Council may by agreement purchase and acquire the land described in the schedule hereto and may use such land when acquired by them and may construct and maintain cemeteries thereon in addition to their existing cemeteries as if that land had been included in the lands referred to in Section 53 of the Local Act.

Additional
land for
cemeteries.

A.D. 1901.

Buxton Order.

44 & 45 Vict.

c. clxii.

49 & 50 Vict.

c. lxi.

55 & 56 Vict.

c. lxxviii.

60 & 61 Vict.

c. lxxviii.

(c.) The Buxton Order 1881 which was confirmed by the Local Government Board's Provisional Orders Confirmation (Acton &c.) Act 1881 ;

(d.) The Buxton Order 1886 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1886 ;

(e.) The Buxton Order 1892 which was confirmed by the Local Government Board's Provisional Orders Confirmation Act 1892 ; and

(f.) The Buxton Order 1897 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1897 ;

(all which Orders and Confirming Acts are herein-after together referred to as "the Orders" or "the Confirming Acts") and by another Provisional Order which was duly confirmed by Parliament but which does not affect the subject-matter of this Order ;

And whereas by the Local Act as altered by the Buxton Order 1878 the Buxton Order 1880 and the Buxton Order 1881 the Buxton Local Board (herein-after referred to as "the Local Board") were empowered to borrow for the purposes of their gas undertaking sums amounting in the whole to the sum of forty thousand pounds and the Local Board were required to pay off all the moneys borrowed by them under the Local Act as so altered within fifty years after the same were borrowed ;

And whereas by the Local Act as altered by the Buxton Order 1886 and the Buxton Order 1892 the Local Board were empowered to borrow for the purposes of their water undertaking sums amounting in the whole to the sum of forty-five thousand pounds ;

And whereas by Article I. of the Buxton Order 1897 the District Council were empowered with the sanction of the Local Government Board to borrow such sums not exceeding in the whole the sum of ten thousand pounds as might be necessary for the purposes of their water undertaking in addition to the said sum of forty-five thousand pounds ;

And whereas the Local Board or District Council have under the Local Act and the Orders or some of them borrowed with the sanction of the Local Government Board and for the purposes of their gas undertaking the sums of three hundred and twelve pounds four hundred and forty-four pounds and two thousand six hundred and thirty-nine pounds which sums are being repaid by the District Council within thirty years ten years and fifteen years respectively from the respective dates of borrowing ;

And whereas it is expedient that the District Council should be empowered to borrow further moneys for the purposes of their gas and water undertakings and that other provisions should be made as herein-after mentioned :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Acts so far as they respectively relate to the Orders shall be altered so as to provide as follows:—

38 & 39 Vict.
c. 55.

A.D. 1901.

Provisional Orders Confirmation (No. 2) Act, 1901.

Buxton Order.

Additional borrowing power for water undertaking.

Period for repayment of moneys borrowed under the Local Act and Orders for gas undertaking.

Art. I. Article I. of the Buxton Order 1897 shall have effect as if the words "twenty-five thousand pounds" were substituted therein for the words "ten thousand pounds".

Art. II. The periods of thirty years ten years and fifteen years respectively shall be and shall be deemed always to have been the periods within which the District Council are and have been required to repay the said sums of three hundred and twelve pounds four hundred and forty-four pounds and two thousand six hundred and thirty-nine pounds and the provisions of the Buxton Order 1880 and the Buxton Order 1881 shall have and be deemed to have had effect accordingly and any sum hereafter borrowed under the Buxton Order 1881 shall be repaid within such period not exceeding fifty years as the District Council with the sanction of the Local Government Board shall determine.

Additional borrowing power for gas undertaking.

Art. III. The District Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow in addition to the said sum of forty thousand pounds and upon the security of the revenue arising from their gas undertaking and of the district fund and general district rate of the District or upon either of such securities sums not exceeding in the whole the sum of twenty-six thousand pounds for the purposes of their gas undertaking.

Local Loans Act and certain provisions of Public Health Act made applicable.

Art. IV. For the purpose of raising money under Article III. of this Order the provisions of the Local Loans Act 1875 shall be available to the District Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under Articles III. and VIII. of this Order.

Period for repayment of moneys borrowed under Article III. of this Order.

Art. V. The moneys borrowed under Article III. of this Order shall be repaid within such period not exceeding thirty years from the date of borrowing as the District Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of repayment.

Art. VI.—(1.) The District Council shall repay the moneys borrowed under Article III. of this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or the others of them.

Formation maintenance and application of sinking fund.

(2.) Subject to the provisions of Article VII. of this Order if the District Council determine to repay by means of a sinking fund any moneys borrowed under Article III. of this Order such sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of

which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund ; or

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Buxton Order.

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3.) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the District Council the District Council being at liberty from time to time to vary and transpose such investments.

(4.) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the District Council towards the equal annual payments to the fund.

(5.) The District Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the District Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6.)—(a.) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the District Council.

(b.) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(7.) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the District Council in addition to the payments provided for by this Order.

Art. VII.—(1.) If it appears to the District Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon

Increase
reduction or
discontinuance
of payments to
sinking fund.

A.D. 1901. (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the District Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the District Council shall increase the payments to such extent as the Board may direct.

Buxton Order.

(2.) If the District Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3.) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the District Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4.) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the District Council may with the consent of the Board discontinue the equal annual payments to such sinking fund until the Board otherwise direct.

Surplus of sinking fund.

(5.) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the District Council with the consent of the Local Government Board may determine.

Power to

re-borrow.

Art. VIII. The District Council shall except as herein-after provided have power to re-borrow for the purpose of paying off any moneys borrowed under Article III. of this Order or re-borrowed under this Order which have not been repaid and are intended to be forthwith repaid or in respect of any such moneys which have been repaid by the temporary application of funds at the disposal of the District Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow :

Provided that the District Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose :

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Application of borrowed moneys.

Art. IX. All moneys from time to time borrowed under Article III. of this Order or re-borrowed under this Order shall be applied by the District Council only for the purposes for which the same are respectively authorised

to be borrowed or re-borrowed excepting that moneys which may have been borrowed or re-borrowed in excess of the amount required shall be applied in such manner as the District Council with the approval of the Local Government Board determine.

A.D. 1901.

Buxton Order.

Art. X.—(1.) Subject to the provisions of this Article any mortgagee of the District Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2.) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him.

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to such applicants collectively be not less than five hundred pounds in the whole.

Art. XI.—(1.) The clerk of the District Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised under Articles III. and VIII. of this Order and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by a

Return as to
provision for
repayment
of debt.

statutory declaration of such clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2.) If it appears to the Local Government Board by that return or otherwise that the District Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Order or by

A.D. 1901. the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Board may by Order direct that the sum in such Order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such Order mentioned and any such Order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Buxton Order.

Inquiries and expenses.

Art. XII. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to such inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in such inquiry) shall be paid by the District Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the District Council shall be a debt due to the Crown from the District Council.

Short titles.

Art. XIII. This Order may be cited as the Buxton Order 1901 and the Buxton Orders 1878 to 1897 and this Order may be cited together as the Buxton Orders 1878 to 1901.

Given under the Seal of Office of the Local Government Board this
First day of April One thousand nine hundred and one.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

BOROUGH OF LEICESTER.

Leicester Order.

Provisional Order for altering a Confirming Act.

To the Mayor Aldermen and Burgesses of the Borough of Leicester ; —

And to all others whom it may concern.

WHEREAS the Borough of Leicester (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Leicester Corporation Act 1884 (herein-after referred to as "the Local Act") as altered by the Provisional Order herein-after recited and by certain other Local Acts and Provisional Orders which were duly confirmed by Parliament but which do not affect the subject-matter of this Order are in force in the Borough ;

47 Vict.
c. xxxii.

And whereas by Section 25 of the Local Act the Corporation were empowered to exercise any statutory borrowing power by creation of Corporation Stock to be from time to time issued in accordance with the

A.D. 1901.

BOROUGH OF LEICESTER.

Leicester
Order.*Provisional Order to enable the Urban Sanitary Authority for the Borough of Leicester to put in force the Compulsory Clauses of the Lands Clauses Acts.*

To the Mayor Aldermen and Burgesses of the Borough of Leicester;—

And to all others whom it may concern.

WHEREAS the Mayor Aldermen and Burgesses of the Borough of Leicester acting by the council as the Urban Sanitary Authority for that Borough (herein-after referred to as "the Corporation") require to purchase and take the lands described in the schedule hereto which are now used by the Corporation and are required for the disposal of the sewage of the Borough and for providing access to such lands:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 176 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the

redeemable after the expiration of the stock;

And whereas it is expedient that the Order should be altered in manner herein-after appearing:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 297 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

Art. I. The Confirming Act shall be applied to the Order so as to affect stock created and issued subdivision (1) of Article IV. of the Order before the date of the Act of Parliament confirming this Order.

Provided that nothing in this Order shall affect stock created and issued by the Corporation prior to the date of the Act of Parliament confirming this Order.

Art. II. This Order may be cited as the Leicester Order 1901 and may together with the Leicester Orders 1893 and 1896 and the Leicester Order of the Act of Parliament confirming this Order be cited as the Leicester Orders 1893 to 1901.

(No. 3)

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

[1 Edw. 7.] *Local Government Board's* [Ch. xli.]
Provisional Orders Confirmation (No. 2) Act, 1901.

provisions of that Act but it was provided that all redeemable stock should be created subject to such terms and conditions as that the same should form one and the same class of stock ;

A.D. 1901.
Leicester
Order.

And whereas by subdivision (1) of Article IV. of the Leicester Order 1893 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 11) Act 1893 (which Provisional Order and Confirming Act are herein-after respectively referred to as "the Order" and "the Confirming Act") the Corporation were empowered notwithstanding anything contained in Section 25 of the Local Act from time to time to exercise any statutory borrowing power by the creation and issue under the powers of the Local Act of a new class of redeemable stock at such price not being lower than ninety-five pounds per centum and bearing such dividend not exceeding three pounds per centum per annum as the Corporation might by the resolution for such issue determine but it was provided that all stock at any time and from time to time so created should be created on and subject to such terms and conditions as that the same should form one and the same class of stock bearing one and the same rate of dividend and should become

56 & 57 Vict.
c. cxx.

...direct viz., ...

Art. I. The Corporation shall be empowered to put in force with reference to the lands described in the schedule hereto and for the purposes aforesaid the powers of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement or any of them.

Art. II. This Order may be cited as the Leicester Order (Sewage Lands) 1901.

The SCHEDULE above referred to.

No. and Colour of deposited Plans.	Description of Lands.	Own of LEICESTER.	Lessees or reputed Lessees and Occupiers.
1 Pink	Land (part of sewage farm) and part of the bed of the River Soar.	Isaac Henry Harrison and the Trustees of the Will of Isaac Harrison deceased viz. Charles Durham and Walter Brook.	

Given under the Seal of Office of the Local Government
Twenty-seventh day of March One thousand nine
and one.

(L.S.)

WALTER H. LONG President this
S. B. PROVIS Secretary.

A.D. 1901.

*Milton next
Sittingbourne
Order.*Local Loans
Act and certain
provisions of
Public Health
Act made
applicable.Period for
repayment of
borrowed
moneys.Mode of
repayment.Formation
maintenance
and appli-
cation of
sinking fund.

be necessary for the purposes of their gas undertaking in addition to the sums which they are already authorised to borrow for such purposes.

Art. II. For the purpose of raising money under this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order.

Art. III. The moneys borrowed under this Order shall be repaid within such period not exceeding fifty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the moneys to be repaid be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Art. IV.—(1.) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

(2.) Subject to the provisions of Article V. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order such sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3.) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council the Council being at liberty from time to time to vary and transpose such investments.

(4.) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

[1 EDW. 7.]

Local Government Board's

[Ch. xli.]

Provisional Orders Confirmation (No. 2) Act, 1901.

URBAN DISTRICT OF MILTON NEXT SITTINGBOURNE.

A.D. 1901.

*Provisional Order for altering a Local Act and
Confirming Acts.*

*Milton next
Sittingbourne
Order.*

To the Urban District Council of Milton next Sittingbourne ; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Milton next Sittingbourne (herein-after referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Milton next Sittingbourne (herein-after referred to as "the District");

And whereas the unrepealed provisions of a Local Act of Parliament passed in the first year of the reign of Her late Majesty Queen Victoria intituled "An Act for better paving cleansing lighting watching and otherwise
"improving the Town of Milton-next-Sittingborne in the County of Kent" (herein-after referred to as "the Local Act") as altered by the Provisional Orders herein-after recited are in force in the District;

1 Vict. c. ii.

And whereas by the Local Act as altered by a Provisional Order of the Local Government Board dated the Twenty-ninth day of February One thousand eight hundred and seventy-six which was confirmed by the Local Government Board's Provisional Orders Confirmation (Arundel &c.) Act 1876 and by another Provisional Order of the Local Government Board dated the Fourth day of June One thousand eight hundred and eighty-four which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1884 (each of which Orders is herein-after referred to as the Order of the year in which it was made and all of which Orders and Confirming Acts are herein-after together referred to as "the Orders" or "the Confirming Acts") the Urban District Council of Milton next Sittingbourne or their predecessors were empowered to borrow money for the purposes of their gas undertaking;

39 Vict. c. xiii.

47 & 48 Vict.
c. ccxii.

And whereas it is expedient to increase the amount which may be borrowed by the Council for the purposes of the gas undertaking and to make such other provisions as are herein contained :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Acts so far as they respectively relate to the Orders shall be altered so that the following provisions shall have effect viz.,—

38 & 39 Vict.
c. 55.

Art. I. The Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue arising from their gas undertaking and of the district fund and general district rate of the District or upon either of such securities such sums not exceeding in the whole the sum of seven thousand pounds as may

*Additional
borrowing
powers for gas
undertaking.*

(5.) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

A.D. 1901.

Milton next
Sittingbourne
Order.

(6.)—(a.) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council.

(b.) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(7.) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Art. V.—(1.) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

Increase
reduction or
discontinuance
of payments to
sinking fund.

(2.) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3.) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4.) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay

A.D. 1901.

*Milton next
Sittingbourne
Order.*Surplus of
sinking fund.Power to
re-borrow.Application
of borrowed
moneys.

Receiver.

Return as to
provision for
repayment of
debt.

the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to such sinking fund until the Board otherwise direct.

(5.) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Art. VI. The Council shall except as herein-after provided have power to re-borrow for the purpose of paying off any moneys borrowed or re-borrowed under this Order which have not been repaid and are intended to be forthwith repaid or in respect of any moneys which have been repaid by the temporary application of funds at the disposal of the Council within twelve months before the re-borrowing and which at the time of the repayment it was intended to re-borrow :

Provided that the Council shall not have power to re-borrow for the purpose of paying off any moneys repaid by instalments or annual payments or by means of a sinking fund or out of moneys derived from the sale of land or out of any capital moneys properly applicable to the purpose of such repayment other than moneys borrowed for that purpose :

Provided also that any moneys re-borrowed shall be deemed to form the same loan as the money for the repayment of which the re-borrowing has been made and shall be repaid within the prescribed period.

Art. VII. All moneys from time to time borrowed or re-borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed or re-borrowed excepting that moneys which may have been borrowed or re-borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine.

~~Art. VIII. (1.) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.~~

(2.) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to such applicants collectively be not less than five hundred pounds in the whole.

Art. IX.—(1.) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a

sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of such clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return such clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

A.D. 1901.

*Milton next
Sittingbourne
Order.*

(2.) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Board may by Order direct that the sum in such Order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such Order mentioned and any such Order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Art. X. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Act or the Orders or this Order the costs incurred by the Board in relation to such inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in such inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.

*Inquiries and
expenses.*

Art. XI. The Local Act may be cited as the Milton next Sittingbourne Improvement Act 1838 the Order of 1876 may be cited as the Milton next Sittingbourne Order 1876 the Order of 1884 may be cited as the Milton next Sittingbourne Order 1884 this Order may be cited as the Milton next

Short title.

A.D. 1901. Sittingbourne Order 1901 and all those Orders may be cited together as the Milton next Sittingbourne Orders 1876 to 1901.

*Milton next
Sittingbourne
Order.*

Given under the Seal of Office of the Local Government Board this
Fourteenth day of February One thousand nine hundred and one.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

BOROUGH OF NEATH.

Neath Order.

Provisional Order for altering a Local Act and a Confirming Act.

To the Mayor Aldermen and Burgesses of the Borough of Neath ;—
And to all others whom it may concern.

WHEREAS the Borough of Neath (herein-after referred to as "the Borough") is an Urban District of which the Mayor Aldermen and Burgesses acting by the council (herein-after referred to as "the Corporation") are the Urban District Council and as such council are the local authority within the meaning of the Public Health Act 1875 ;

37 & 38 Vict.
c. c.

And whereas the Neath Corporation Gas Act 1874 (herein-after referred to as "the Local Act") as altered by the Provisional Order herein-after mentioned is in force in the Borough ;

And whereas by the Local Act the Corporation were empowered to purchase the gas undertaking of the Neath New Gas Company and to manufacture and supply gas within the limits as defined by Section 4 of the Local Act and also to borrow with the sanction of the Local Government Board such sums of money as they might require for the purposes of the Local Act with respect to gas not exceeding in the whole the sum of twenty thousand pounds in addition to the amount required for the purchase of the gas undertaking of the said company ;

And whereas by Section 10 of the Local Act the Corporation were authorised to purchase by agreement and hold lands within the limits of the Local Act and to appropriate and use the same for any of the purposes of the Local Act but it was provided that they should not hold at any one time a greater quantity of land than ten acres nor erect any works for the manufacture of gas or residual products or manufacture gas or residual products upon any such lands ;

56 & 57 Vict.
c. cxv.

And whereas by Article I. of a Provisional Order of the Local Government Board dated the Twenty-second day of March One thousand eight hundred and ninety-three (herein-after referred to as "the Order") and duly confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1893 (herein-after referred to as "the Confirming Act") the Corporation were authorised with the sanction of the Local Government Board to borrow for the purposes of their gas undertaking on the securities therein mentioned

sums not exceeding in the whole the sum of twenty thousand pounds in addition to the sums which they were authorised to borrow by the Local Act as aforesaid; A.D. 1901.
Neath Order.

And whereas under the provisions of Section 10 of the Local Act the Corporation have acquired the land adjoining their existing gasworks which is described in the schedule hereto and it is expedient that the Corporation should be empowered to use such land for the purposes herein-after mentioned and to borrow further moneys for gasworks purposes :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Act so far as it relates to the Order shall be altered so as to provide as follows viz.,— 38 & 39 Vict.
c. 55.

Art. I. Article I. of the Order shall have effect as if the words "forty thousand pounds" were substituted therein for the words "twenty thousand pounds". Increase of
borrowing
powers for
purposes of
gas under-
taking.

Art. II. Notwithstanding anything contained in Section 10 of the Local Act the Corporation may use the land described in the schedule hereto for all or any of the purposes of their gas undertaking including the manufacture and storage of gas and residual products and matters producible therefrom. Additional gas
lands.

Art. III. The Order may be cited as the Neath Order 1893 this Order may be cited as the Neath Order 1901 and the said Orders may together be cited as the Neath Orders 1893 and 1901. Short titles.

The SCHEDULE above referred to.

All that piece of land situate in the Borough and adjoining the existing gasworks of the Corporation and containing by admeasurement 2765 square yards or thereabouts which was conveyed to the Corporation by an Indenture dated the 18th day of December 1899 and made between Samuel Bevan of the one part and the Mayor Aldermen and Burgesses of the Borough of Neath of the other part.

Given under the Seal of Office of the Local Government Board this
Twentieth day of March One thousand nine hundred and one.

(L.S.)

WALTER H. LONG President.
S. B. PROVIS Secretary.

A.D. 1901.

URBAN DISTRICT OF NEWTON IN MACKERFIELD.

*Newton in
Mackerfield
Order.**Provisional Order for altering the Newton District
Improvement Act 1855.*

To the Urban District Council of Newton in Mackerfield; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Newton in Mackerfield (herein-after referred to as "the District Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Newton in Mackerfield (herein-after referred to as "the district");

18 & 19 Vict.
c. c.63 & 64 Vict.
c. liii.

And whereas the unrepealed provisions of the Newton District Improvement Act 1855 (herein-after referred to as "the Local Act") as altered by the Newton in Mackerfield Order 1900 (which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1900 and is herein-after referred to as "the Order") and by certain other Provisional Orders of the Local Government Board which were duly confirmed by Parliament but which do not affect the subject-matter of this Order are in force in the district;

10 Vict. c. 16.

And whereas by virtue of Section 1 of the Local Act the provisions of Sections 75 to 79 and 81 to 88 of the Commissioners Clauses Act 1847 are incorporated with the Local Act;

And whereas by Section 51 of the Local Act provision is made for the application of all moneys received by the District Council from the water rate and from rates rents or payments for the supply of water all of which are herein-after referred to as "the revenue of the water undertaking";

And whereas by Section 53 of the Local Act the District Council or their predecessors for the purposes of their water undertaking were empowered to borrow and have borrowed on the securities mentioned in that section the sum of six thousand pounds;

And whereas it is expedient that the District Council should be empowered to borrow further moneys for the purposes of their water undertaking:

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect viz.,—

*Additional
borrowing
powers for
water under-
taking.*

Art. I. The District Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow for the purposes of their water undertaking and on the security of the revenue of the water undertaking and of the district fund and general district rate or upon either of such securities any sum or sums not exceeding in the whole the sum of

A.D. 1901.

twenty-five thousand pounds in addition to the said sum of six thousand pounds.

*Newton in
Mackerfield
Order.*

Art. II. The provisions of Sections 75 to 79 and 81 to 88 of the Commissioners Clauses Act 1847 shall not apply to the moneys to be borrowed or re-borrowed in pursuance of this Order.

Mortgage provisions of Commissioners Clauses Act not to apply.

Art. III. The moneys borrowed under this Order shall be repaid within such period not exceeding thirty years from the date of borrowing as the District Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned shall with reference to the moneys to be repaid be the prescribed period for the purposes of the Local Loans Act 1875 and of Articles V. VI. VII. and VIII. of the Order as applied by this Order.

Period for repayment of borrowed moneys.

Art. IV. Articles III. and V. to X. of the Order shall apply to any moneys borrowed under this Order as if such moneys had been borrowed in pursuance of the provisions of the Order and Article XII. of the Order shall apply to the costs of any local inquiry to be held with reference to the purposes of this Order.

Raising repayment &c. of borrowed moneys.

Art. V. Section 51 of the Local Act shall have effect as if for the paragraphs commencing firstly and secondly there were substituted in the said section the following paragraphs :—

Alteration of Section 51 of Local Act.

First in payment of the interest on the moneys borrowed or re-borrowed for the purposes of the water undertaking ;

Secondly in providing the requisite instalments or sinking funds in respect of moneys borrowed or re-borrowed for the purposes of the water undertaking.

Art. VI. This Order may be cited as the Newton in Mackerfield Order 1901.

Short title.

Given under the Seal of Office of the Local Government Board this
First day of April One thousand nine hundred and one.

(L.S.)

WALTER H. LONG President.

S. B. PROVIS Secretary.

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